

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

2. CURTIS CHRISTENSEN V. GINA CHRISTENSEN

PFL20170845

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on June 4, 2026, alleging 21 counts of contempt. Respondent was personally served on July 7, 2026.

Parties appeared on August 13, 2026, at which time the court noted Minors' Counsel was not present and had not been properly served. Petitioner requested the matter be continued to allow time to serve Minors' Counsel. The court granted the request to continue and set the matter for a further hearing on September 24, 2026 at 8:30 AM in Department 5.

Petitioner filed a Declaration of Counsel on August 27, 2026, attesting to the service of Minors' Counsel. The Declaration was served on Respondent, Minors' Counsel, as well as the Department of Child Support Services on August 27, 2026.

Parties are ordered to appear for arraignment.

TENTATIVE RULING #2: PARTIES ARE ORDERED TO APPEAR FOR ARRAIGNMENT.

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3. DANNA DEPUGLIA V. BRUCE LESLIE GILBERT

26FL0466

On July 23, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were served electronically on July 24th.

Respondent filed and served his Income and Expense Declaration and his Responsive Declaration to Request for Order on September 3, 2026.

Petitioner has not filed a reply declaration.

Petitioner is requesting guideline spousal support and need-based attorney's fees in the amount of \$5,000.

Respondent opposes the request for support. If the court is inclined to award spousal support, Respondent asks that he be permitted to deduct Petitioner's one-half share of the mortgage for the Ridgeway Drive property pending its sale. He also opposes the request for attorney's fees. However, if attorney's fees are granted, he asks that they be awarded from Respondent's share of the net sale proceeds of the home.

After reviewing the filings of the parties, it does appear that Petitioner has the capacity to earn more than she currently does and to eventually become self-supporting. That said, the parties just recently separated in April of this year. Given that it has been just months since the separation the court is not inclined to deny or reduce support based on the fact that Petitioner is not yet self-supporting. As such, the request for spousal support is granted. Utilizing the figures as outlined in the attached Xspouse report, the court finds that spousal support per the Alameda formula is \$702 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$702 per month as and for temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of August 1, 2026.

The court finds the above order results in arrears in the amount of \$1,404 through and including September 1, 2026. The court orders Respondent pay Petitioner \$117 on the 15th of each month commencing on October 15, 2026 and continuing until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.

The court further finds Respondent routinely earns overtime pay and therefore has included an overtime table with the Xspouse. Respondent is to pay Petitioner a true up of